



CHAPTER xx

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to Edinburgh and Midlothian Water.

[30th July 1949.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has after inquiry held before Commissioners been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.
2. This Act may be cited as the Edinburgh and Midlothian Water Order Confirmation Act 1949.

Confirmation
of Order in
schedule.

Short title.

SCHEDULE

EDINBURGH AND MIDLOTHIAN WATER

Provisional Order to extend the limits for the supply of water by the Corporation of the city of Edinburgh to transfer to and vest in the said Corporation the water undertakings of the county council of the county of Midlothian of the town councils of the burghs of Bonnyrigg and Lasswade Dalkeith Loanhead and Penicuik and of the Musselburgh and Dalkeith Water Trustees to provide for the setting up by the said Corporation of a water committee to manage the water undertaking of the said Corporation on their behalf and for the inclusion in the said committee of representatives of the said county council and of the town councils of the burghs in the said county to enact provisions with respect to the levying of water rates and charges and the supply of water to make provision for the finances of the water undertaking of the said Corporation and for other purposes

WHEREAS the lord provost magistrates and council of the city and royal burgh of Edinburgh (hereinafter referred to as the "Corporation") are vested with the municipal government of the said city and royal burgh (hereinafter referred to as "the city") and are the local authority therein :

9 & 10 Geo. 6.
c. 42.

And whereas the Corporation are by virtue of the Edinburgh Corporation Water Acts and Orders 1621 to 1949 authorised to supply and are supplying water within the city and certain adjoining districts within the limits of supply as defined by the said Acts and are the local water authority within the city and such adjoining districts within the meaning and for the purposes of the Water (Scotland) Act 1946 :

34 & 35 Vict.
c. cxxxiii.

And whereas the county council of the county of Midlothian (hereinafter referred to as "the county council" and "the county" respectively) are the authority for the supply of water and are supplying water within a large part of the landward area of the county and the town councils of the burghs of Bonnyrigg and Lasswade Dalkeith Loanhead and Penicuik and the town council of the burgh of Musselburgh as trustees under the Musselburgh and Dalkeith Water Act 1871 are supplying water within their respective burghs and within the limits of supply prescribed by the said Act respectively :

And whereas the Corporation are supplying water in bulk to the county council to the town councils of the burghs of Bonnyrigg and Lasswade Dalkeith and Loanhead and to the town council of the burgh of Musselburgh as trustees aforesaid and have also entered into an agreement with respect to the supply of water to the town council of the burgh of Penicuik :

And whereas the city the landward area of the county and the burghs aforesaid together form an area which could be conveniently and economically supplied with water by one authority

and thereby better utilization made of the various sources of supply which have been developed by the Corporation and the other authorities aforesaid or which could be made available for use in the said area :

And whereas it is expedient and would be in the public interest if the Corporation were constituted the local water authority for the whole of the said area and if the existing water undertakings of the county council and of the town councils of the burghs of Bonnyrigg and Lasswade Dalkeith Loanhead and Penicuik and of the town council of the burgh of Musselburgh as trustees aforesaid were transferred to and vested in the Corporation :

And whereas with a view to managing the water undertaking of the Corporation thus extended and constituted in the interests of the city and of the county and of the burghs therein it is expedient and would be in the public interest to provide for the setting up by the Corporation of a water committee to manage the water undertaking on behalf of the Corporation as provided in this Order and to provide for the inclusion in such committee of representatives nominated by the county council and the said town councils :

And whereas it is expedient that the further provisions contained in this Order with respect to the said water undertaking and the supply of water in the city the landward area of the county and the said burghs should be enacted :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936 :

26 Geo. 5. &
1 Edw. 8.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows :—

PART I

PRELIMINARY

1. This Order may be cited as the Edinburgh and Midlothian Short and Water Order 1949 and the Edinburgh Corporation Acts 1924 to collective titles. 1937 and this Order may be cited together as the Edinburgh Corporation Acts 1924 to 1949.

This Order shall be included among the Acts and Orders which may be cited together as the Edinburgh Corporation Water Acts and Orders 1621 to 1949.

2. This Order is divided into Parts as follows :—

Order divided
into Parts.

Part I.—Preliminary.

Part II.—Extension of limits of supply of Corporation.

Part III.—Transfer of water undertakings &c. to Corporation.

Part IV.—Appointment of water committee.

Part V.—Functions &c. of water committee.

Part VI.—Water rates and charges.

Part VII.—Miscellaneous.

PART I

—cont.

Commencement
of Order.

3. This Order shall except where otherwise provided in this Order be deemed to have commenced and to have had effect on and from the sixteenth day of May one thousand nine hundred and forty-nine which date is hereinafter referred to as "the appointed day."

Interpretation.

4. In this Order unless there is something in the subject or context repugnant to such construction the following words and expressions shall have the meanings hereinafter respectively assigned to them (that is to say):—

10 & 11 Geo. 6.
c. 43.

"Act of 1947" means the Local Government (Scotland) Act 1947;

"added limits" means the landward area of the county and the burghs (so far as not within the existing limits);

"appointed day" means the sixteenth day of May one thousand nine hundred and forty-nine;

"burgh assessments" has the meaning assigned to it by section 4 (Interpretation) of the Order of 1932 as amended by subsection (1) of section 39 (Burgh assessments to include water rates) of the Order of 1935;

"burghs" means the burghs of Bonnyrigg and Lasswade Dalkeith Loanhead Musselburgh and Penicuik and
"burgh" means any one of such burghs;

"city" means the city and royal burgh of Edinburgh;

"Corporation" means the Corporation of the city of Edinburgh;

"county" means the county of Midlothian excluding the city;

"county clerk" means the county clerk of the county for the time being;

"county council" means the county council of the county;

"delegate" has the same meaning as in the Act of 1947;

"existing limits" means the limits for the supply of water by the Corporation as existing immediately before the appointed day;

"existing" means existing immediately before the appointed day;

"landward area of the county" means the county excluding the burghs;

"limits of supply" means the existing limits as extended by this Order;

"loans fund" has the same meaning as in the Order of 1932;

"Order of 1924" "Order of 1932" and "Order of 1935" mean respectively the Edinburgh Corporation Water Order 1924 the Edinburgh Corporation Order 1932 and the Edinburgh Corporation Order 1935;

“rateable value” has the same meaning as in the Act of 1947 ;

“refer” has the same meaning as in the Act of 1947 and “stand referred” shall be construed accordingly ;

“sheriff” means the sheriff of the Lothians and Peebles and includes his substitutes or any one of them ;

“town clerk” means the town clerk of the city for the time being ;

“town councils” means the town councils of the burghs and “town council” in relation to any one of the burghs means the town council of that burgh ;

“transferor authorities” means the county council the town councils of the burghs of Bonnyrigg and Lasswade Dalkeith Loanhead and Penicuik and the Musselburgh and Dalkeith Water Trustees and “transferor authority” means any one of the transferor authorities ;

“transferred undertakings” means the water undertakings of the transferor authorities and in the case of each of such undertakings includes—

(a) all the lands buildings waterworks water sources of supply (including wells pumps conduits and other works used for the supply of water) filters machinery mains pipes meters plant spare parts tools apparatus vehicles stores and other heritable and moveable property assets and effects rights powers and privileges vested in or enjoyed by the transferor authority for or in relation to such water undertaking immediately before the appointed day or to which the transferor authority are subject for or in relation to such undertaking ; and

(b) all registers title deeds maps plans records specifications engineering reports and other documents relating to such undertaking ;

“transferred undertaking” means any one of the transferred undertakings ;

“Water Act 1946” and “Water Act 1949” mean respectively 12 & 13 Geo. 6. the Water (Scotland) Act 1946 and the Water (Scotland) c. 31. Act 1949 ;

“water committee” means the committee appointed in accordance with the section of this Order of which the marginal note is “Appointment of water committee” ;

“water undertaking” has the same meaning as in the Order of 1924 and includes the transferred undertakings.

PART II

EXTENSION OF LIMITS OF SUPPLY OF CORPORATION

5.—(1) The limits for the supply of water by the Corporation and the limits for the compulsory supply of water by the Corporation are subject to the provisions of this Order and as on the appointed day hereby extended so as to include the added limits and accordingly the limits for the supply of water by the Corporation and the limits for the compulsory supply of water by the Corporation shall be the city the landward area of the county and the burghs.

PART II
—cont.

(2) Subject to the provisions of this Order the Corporation shall have and may exercise within the added limits all and the like powers rights privileges and authorities and shall be subject to all and the like duties liabilities and obligations as they now have may exercise and are subject to within the existing limits and the provisions of the existing enactments relating to the water undertaking and to the supply of water by the Corporation and otherwise with respect to water purposes and any byelaws or regulations made in pursuance thereof respectively so far as such provisions byelaws and regulations are not inconsistent with the provisions of this Order shall extend and apply to and within the added limits Provided that nothing contained in this section shall prevent any rescission revocation amendment or variation of the said byelaws or regulations.

(3) The Corporation shall notwithstanding anything in any Act be the local water authority within the meaning and for the purposes of the Water Act 1946 within the limits of supply and the county council the town councils and the Musselburgh and Dalkeith Water Trustees respectively shall cease to be the local water authority within the county and within their respective burghs or limits of supply but without prejudice to the rights powers duties and obligations of the county council and the town councils as local authorities within the meaning and for the purposes of the Water Act 1946.

PART III

TRANSFER OF WATER UNDERTAKINGS &C. TO CORPORATION

Transfer of
water under-
takings to
Corporation.

6. As on and from the appointed day the transferred undertakings shall subject to the provisions of this Order be and are by virtue of this Order transferred to and vested in the Corporation and shall be received held used and enjoyed by them and the transferred undertakings shall for all purposes form part of the water undertaking.

Vesting of
property
transferred to
Corporation.

7. All property transferred to or vested in the Corporation by virtue of this Order shall vest in them without the necessity of recording in the register of sasines any conveyance notarial instrument notice of title or other deed or writing but for the purpose of enabling the Corporation to complete a title if thought fit to any property transferred to and vested in them by virtue of this Order by expediting a notarial instrument notice of title or otherwise this Order shall be deemed to be and may be used as a general disposition or assignation as the case may be of such property in favour of the Corporation.

Abolition of
Calder district.

8. Subject to the provisions of this Order the Calder district as defined in the Midlothian (Calder District) Water Order 1924 shall be deemed as from the appointed day to have ceased to exist as a water supply area.

Cesser of
powers of
county council
and town
councils to
supply water.

9. Subject to the provisions of this Order the powers of the county council and of the town councils with reference to the supply by them of water shall be deemed as from the appointed day to have ceased and to have been determined.

10. Subject to the provisions of this Order the powers of the Musselburgh and Dalkeith Water Trustees shall be deemed as from the appointed day to have ceased and determined and the trust constituted by the Musselburgh and Dalkeith Water Act 1871 shall be deemed to have been dissolved.

Cesser of powers and dissolution of Musselburgh and Dalkeith Water Trust.

11. All agreements between the Corporation and the transferor authorities or between any two or more of the transferor authorities relating to the supply of water to or by the Corporation or to or by any of the transferor authorities which are in force at the appointed day shall as from the appointed day be void and of no effect but without prejudice to the right of the Corporation or any of the transferor authorities to recover any sums accrued due and payable to them respectively at the appointed day under any such agreement and in the case of any sums due to the Musselburgh and Dalkeith Water Trustees at the appointed day such sums may be recovered by the town council of the burgh of Musselburgh.

Annulment of agreements between Corporation and transferor authorities &c.

12. After the appointed day all feu contracts feu charters dispositions securities contracts agreements and obligations granted made or entered into in favour of or by or with a transferor authority in relation to a transferred undertaking shall subject to the provisions of this Order remain in full force and effect and shall be available to or against the Corporation in the same manner as the same would or might have been available to or against the transferor authority before the appointed day.

Contracts &c. to remain in force.

13. All legal or other proceedings begun before the appointed day and relating to any property or liabilities transferred to the Corporation in respect of a transferred undertaking may be carried on with the substitution of the Corporation as party to the proceedings in lieu of the transferor authority from whom the property or liabilities was or were transferred and any such proceeding may be amended in such manner as may be necessary for that purpose.

Proceedings not to abate.

14. All books and documents relating to a transferred undertaking which at the appointed day would have been received in evidence shall on and after the appointed day be received in evidence as if the Act confirming this Order had not been passed.

Books &c. to be evidence.

15. Nothing in this Order shall prejudice or interfere with the powers of the county council or of the town councils or any of them to recover any water rates and charges due to them or any of them at the appointed day in respect of any period before the appointed day and in the case of any water rates and charges due to the Musselburgh and Dalkeith Water Trustees at the appointed day such water rates and charges may be recovered by the town council of the burgh of Musselburgh.

Saving recovery of water rates and charges by county council and town councils.

16.—(1) Subject as hereinafter provided in this section the net amount borrowed (other than sums of money referred to in the section of this Order of which the marginal note is "Special provisions as to money advanced by Corporation to local authorities") on capital account by each of the transferor authorities in respect

Transfer of capital debt.

PART III
—cont.

of its respective transferred undertaking and outstanding at the appointed day shall be and is by this Order as from the appointed day transferred to and shall be undertaken and payable by the Corporation and may be recovered and enforced from and against the Corporation in like manner as it could have been recovered and enforced from and against such transferor authority.

(2) As from the appointed day the transferor authorities shall be freed and relieved by the Corporation from any claim or demand made by any creditor holding any security relating to the net amount borrowed.

(3) This section shall in its application to the town council of the burgh of Penicuik apply and have effect as if for the reference to the net amount borrowed and outstanding at the appointed day there were substituted a reference to the net amount borrowed and outstanding at the sixteenth day of May one thousand nine hundred and forty-five.

(4) For the purposes of this section the expression "net amount borrowed" shall mean the amount borrowed less any sinking funds accumulated for the repayment thereof.

Special provisions as to money advanced by Corporation to local authorities.

17. Notwithstanding anything in this Order or any law or usage to the contrary any sums of money lent by the Corporation to the county council the town councils or any of them in respect of their water undertakings (any such council being referred to in this section as "the borrowing authority") under the powers of section 163 (Power to lend to certain bodies) of the Order of 1932 as amended by section 355 (Amendment of section 163 of Order of 1932) of the Edinburgh Corporation Order 1933 which are outstanding and not paid off on the appointed day shall as from the appointed day be transferred to the Corporation and shall not be deemed to have been extinguished in consequence of such transfer but shall be deemed as from the appointed day to be advances by the Corporation from the loans fund to the water department of the Corporation and all payments by way of interest expenses and capital repayment in relation to such advances shall be credited to the loans fund and be debited against the water undertaking.

Provisions as to transferred debts.

18.—(1) (a) The amounts borrowed by the transferor authorities and transferred to the Corporation in accordance with the provisions of the section of this Order of which the marginal note is "Transfer of capital debt" and (b) the advances referred to in the section of this Order of which the marginal note is "Special provisions as to money advanced by Corporation to local authorities" shall be deemed to be money borrowed by the Corporation for the purposes of the water undertaking in accordance with the provisions of section 125 (Borrowing for public utility undertakings) of the Order of 1932 and the requirements of the said section shall be deemed to have been complied with in relation to such amounts and advances.

(2) The Corporation shall during the year ending on the twenty-eighth day of May one thousand nine hundred and fifty and annually thereafter out of the revenues of the water undertaking pay into the loans fund a sum equal to not less than one-fifteenth of the amounts referred to in the preceding subsection of this section until they are wholly repaid.

19. Nothing in this Order shall prejudice or affect any stock Existing mortgages bonds or assignments or other writs granted in security mortgages. for money borrowed (whether repayable by instalments or otherwise) by a transferor authority in respect of or relating to a transferred undertaking and subsisting at the appointed day and the same shall during the continuance thereof be as valid and effectual in all respects as if the Act confirming this Order had not been passed.

20. Any debts of any of the transferor authorities in relation to its respective transferred undertaking (other than capital debt transferred to the Corporation in accordance with the provisions of the sections of this Order of which the marginal notes are "Transfer of capital debt" and "Special provisions as to money advanced by Corporation to local authorities") due and resting owing on the appointed day shall continue to be payable by such transferor authority and such transferor authority notwithstanding the provisions of the section of this Order of which the marginal note is "Cesser of powers of county council and town councils to supply water" shall have power to meet the expenditure incurred in the payment of such debts out of such rate as such transferor authority may determine. Provided that any such debts due and resting owing by the Musselburgh and Dalkeith Water Trustees shall be payable by the town council of the burgh of Musselburgh. Certain debts to continue to be payable by transferor authorities.

21. Except as otherwise specially provided in this Order nothing in this Order shall prejudice or affect anything done or suffered before the appointed day in relation to the transferred undertakings or any right liability claim or demand incident to or consequent on anything so done or suffered. Proceedings saved.

22. All byelaws rules and regulations of the transferor authorities in force at the appointed day relating to the transferred undertakings shall as from the appointed day be deemed to have ceased to be in force. Repeal of existing byelaws &c.

23.—(1) Notwithstanding anything in this Order the Corporation may make and carry into effect agreements with the county council or the town councils or any of them before or after the appointed day with a view to facilitating the carrying out of the purposes of this Order and generally with respect to the execution of the provisions of this Order. Corporation may enter into agreements with transferor authorities.

(2) The provisions of any such agreement shall be deemed to be within the powers of the Corporation and of the county council and of the town councils or any of them respectively and shall have and be carried into effect accordingly.

PART III

—cont.

Transfer of
and compensa-
tion to officers
of transferor
authorities.

24.—(1) Every officer and servant who immediately before the appointed day was in the whole-time employment of any of the transferor authorities solely in connection with a transferred undertaking (in this Order called “transferred officer”) shall as from the appointed day be deemed to have become an officer or servant of the Corporation and shall hold his office or situation by the same tenure and on the same conditions as immediately before the appointed day and while performing similar duties shall in respect thereof receive not less salary or remuneration than the salary or remuneration to which he would have been entitled if the Act confirming this Order had not been passed.

(2) The Corporation may employ a transferred officer in the discharge of such of their functions in connection with the water undertaking as they may think proper and every such officer shall perform such duties in relation to those functions as may be directed by the Corporation.

(3) Every officer and servant who immediately before the appointed day was in the employment of any of the transferor authorities and who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office by determination of his appointment (otherwise than for misconduct) or by diminution or loss of emoluments (and for whose compensation for that loss no other provision is made by any enactment or statutory order for the time being in force) shall be entitled to payment by the Corporation of compensation for that loss.

(4) A transferred officer who at any time within five years after the appointed day relinquishes office by reason of his having been required to perform duties which are not analogous to or which are an unreasonable addition to those which he was required to perform immediately before the appointed day shall be deemed for the purposes of this section to have had his office determined in consequence of the transfer of functions and unless the contrary is shown to have suffered direct pecuniary loss in consequence thereof by reason of such determination.

(5) A transferred officer whose appointment is determined or whose emoluments are reduced within five years after the appointed day because his services are not required or his duties are diminished (misconduct not being established) shall be deemed unless the contrary is shown to have suffered direct pecuniary loss in consequence of the transfer.

(6) The provisions set out in the Eleventh Schedule to the Act of 1947 (being provisions as to the determination and payment of compensation to officers in case of transfer of functions) shall with any necessary modifications apply for the purposes of this section.

(7) The payment of compensation by way of a lump sum shall be a purpose for which the Corporation may borrow so however that any sum so borrowed shall be repaid within a period of five years from the date on which the payment of the lump sum is made.

PART III
—cont.

25. Notwithstanding anything in the section of this Order of which the marginal note is "Transfer of and compensation to officers of transferor authorities" any increase in the amount of the salary or remuneration of a transferred officer subsequent to the twenty-fifth day of September one thousand nine hundred and forty-seven may if the Corporation so elect be disregarded by them in determining (a) the right of such transferred officer to receive not less salary or remuneration than the salary or remuneration to which he would have been entitled if the Act confirming this Order had not been passed or (b) the amount of compensation payable to any officer or servant in pursuance of the section of this Order of which the marginal note is "Transfer of and compensation to officers of transferor authorities" unless such increase aforesaid was granted with the approval of the Corporation.

Increase of emoluments of transferred officers subsequent to certain date may be disregarded for certain purposes.

26.—(1) For the removal of doubts it is hereby declared that (a) the iron pipe referred to and laid in pursuance of section 15 (Compensation at Newbattle paper mills and to proprietors of Arniston Kirkhill Dalhousie Newbattle and Dalkeith) of the Edinburgh and District Waterworks (Additional Supply) Act 1874 and the minute of agreement referred to in section 94 (Saving of provisions as to compensation water) of the Order of 1924 (hereinafter in this section referred to as "the minute of agreement") and (b) the branch or service pipes referred to in the minute of agreement (other than the two and a half inch pipe from a spring on the estate of Arniston to Arniston House) are and shall be deemed always to have been vested in the Corporation and to be and always to have formed part of the water undertaking.

Provisions as to landowners' main.
37 & 38 Vict. c. clvi.

(2) As on and from the appointed day section 15 of the Edinburgh and District Waterworks (Additional Supply) Act 1874 is hereby repealed and the minute of agreement shall be void and of no effect.

(3) (a) The Corporation shall make compensation to each of the proprietors of the estates of Arniston Kirkhill Dalhousie Newbattle and Dalkeith mentioned in section 15 of the said Act of 1874 in respect of such loss as each of such proprietors may suffer on the termination under this Order of the rights to a supply of water under section 15 of the said Act of 1874 and the amount of such compensation shall failing agreement between the Corporation and any of the said proprietors be determined by an arbiter to be mutually agreed upon between the Corporation and such proprietor or failing agreement to be appointed on the application of either party by the sheriff.

(b) If any question of law arises in the course of such arbitration the arbiter shall at the request of either party state a case for the opinion of the court of session and the opinion of the court shall be final.

(4) The Corporation shall in addition pay to the proprietors of the estates mentioned in subsection (3) hereof compensation for all pipes and other works laid at the expense of the said proprietors or any of them and required by the Corporation for the purpose of the water undertaking.

(5) (a) The amount of such compensation shall failing agreement between the Corporation and any of the said proprietors be

PART III
—cont.

determined by an arbiter to be mutually agreed upon between the Corporation and such proprietor or failing agreement to be appointed on the application of either party by the sheriff.

(b) If any question of law arises in the course of such arbitration the arbiter shall at the request of either party state a case for the opinion of the court of session and the opinion of the court shall be final.

For protection
of National
Coal Board.

27.—(1) The Corporation shall pay to the National Coal Board compensation for all pipes apparatus and other works laid at the expense of the said board or their predecessors for the purpose of utilising water supplied through the pipes declared to be vested in the Corporation in pursuance of subsection (1) of the section of this Order of which the marginal note is "Provisions as to landowners' main" and required by the Corporation for the purpose of the water undertaking.

(2) The amount of such compensation shall failing agreement between the Corporation and the said board be determined by an arbiter to be mutually agreed upon between the Corporation and the said board or failing agreement to be appointed on the application of either party by the sheriff. If any question of law arises in the course of such arbitration the arbiter shall at the request of either party state a case for the opinion of the court of session and the opinion of the court shall be final.

PART IV

APPOINTMENT OF WATER COMMITTEE

Appointment
of water
committee.

28.—(1) Subject to the provisions of this Order the Corporation shall appoint a committee which shall be known as the "water committee" for the purpose of managing the water undertaking on behalf of the Corporation and of carrying out such other functions and duties in relation to the water undertaking as are prescribed in this Order or as may be referred or delegated to the water committee by the Corporation and the water committee shall accordingly manage the water undertaking and carry out the functions and duties referred or delegated to or imposed on them as aforesaid.

(2) The water committee first appointed in pursuance of this section shall assume office as from the appointed day and thereafter the water committee shall be appointed annually by the Corporation at the same time as the other standing committees of the Corporation are appointed.

Constitution
of water
committee.

29.—(1) The water committee shall consist of fifteen members of whom—

- (a) ten shall be members of the Corporation;
- (b) three shall be members of the county council elected for the landward area to be nominated by the county council;
- (c) two shall be nominated by the town councils jointly each of such members being a member of one of the town councils.

(2) The Corporation shall appoint one of the members of the water committee being a member of the Corporation to be the chairman of the water committee.

(3) In the event of the town councils at any time failing to agree as to the nomination of the two members of the water committee referred to in paragraph (c) of subsection (1) of this section the town council of each of the burghs shall submit the name of one of their members to the town clerk and the Corporation shall at a public meeting determine by lot which two of the persons whose names have been so submitted shall serve as members of the water committee and such persons shall serve as members of the water committee until such time as the town councils agree as to the persons to be nominated by them and until such last-mentioned persons have been appointed as members of the water committee by the Corporation.

30. Whenever a nomination of a member of the water committee has been made the county clerk in the case of members nominated by the county council and the town clerk of the burgh of which the member nominated is a member in the case of members nominated by the town councils shall intimate the nomination to the town clerk.

Intimation of members nominated by county council and town councils.

31.—(1) If a member of the water committee ceases to be a member of the local authority by virtue of being a member of which he was nominated for appointment he shall cease to be a member of the water committee.

Disqualification of members.

(2) For the purposes of this section—

- (a) a member of the water committee (other than a member nominated by the county council) shall not be deemed to have ceased to be a member of the water committee if he retires by rotation as a member of the local authority aforesaid and is re-elected at the election of members of such authority immediately following his retirement; and
- (b) a member of the water committee who is a member nominated by the county council and who ceases to be a member of the county council shall cease to be a member of the water committee on the expiry of one month thereafter or on the appointment of his successor whichever event shall first occur.

32.—(1) Any member of the water committee may at any time resign his office as such member by a notice in writing signed by him and delivered to the town clerk and his resignation as such member shall take effect upon the expiration of three weeks after the date of delivery of the notice or upon such earlier date (if any) as may be stated in the notice as the date on which the resignation is to take effect.

Resignation of members.

(2) Where any member of the water committee resigning his office as such member is a member nominated by the county council or by the town councils the town clerk shall on receipt by him of a notice as aforesaid from such member notify the county clerk or the town clerk of the burgh of the town council of which he is a member as the case may be.

PART IV
—cont.Casual
vacancies.Vacancies &c.
not to
invalidate
proceedings.Application of
section 73 of
Act of 1947
to certain
members.
11 & 12 Geo. 6.
c. 26.
11 & 12 Geo. 6.
c. 29.Application
of certain
provisions
of Local
Government Act
1948 to certain
members.Protection
for members
of water
committee.

33. If any member of the water committee being a member nominated by the county council or by the town councils dies or resigns or ceases to be qualified to be a member of the water committee the county council or the town councils as the case may be may at any time after the happening of such event nominate another person to be a member of the water committee in his place and the Corporation shall appoint such person accordingly.

34.—(1) The proceedings of the water committee or of any sub-committee thereof shall not be invalidated by any vacancy among their number or by any failure to nominate or appoint any member or by any defect in the nomination or appointment of any member or by any member voting on or taking part in the consideration or discussion of any question when he is not entitled to do so.

(2) If the proceedings at a meeting of the water committee or of any sub-committee thereof are notwithstanding anything in this Order open to challenge on the ground that the meeting has not been duly convened such proceedings shall be validated by confirmation of the minutes of the meeting at a subsequent meeting duly convened of the water committee or such sub-committee as the case may be.

35. Section 73 (Disability of member of local authority for voting on account of interest in contract &c.) of the Act of 1947 (as amended by section 131 (Disability of members of local authorities for voting on account of interest in contracts &c.) of the Local Government Act 1948 and by the Seventh Schedule to the National Assistance Act 1948) shall extend and apply with respect to the persons nominated by the county council and by the town councils as members of the water committee when acting in their capacity as members of the water committee as if the water committee were a local authority and the town clerk were the clerk of such local authority.

36.—(1) For the purposes of Part VI (Allowances to members of local authorities and other bodies) of the Local Government Act 1948 the performance by any of the members of the water committee nominated by the county council and by the town councils of any approved duty as a member of the water committee shall be deemed to be the performance of an approved duty outwith the area of the Corporation.

(2) For the purposes of section 130 (Insurance by local authorities against accidents to members) of the Local Government Act 1948 the members of the water committee nominated by the county council and by the town councils shall while they are engaged in the business of the water committee be deemed to be engaged in the business of the respective authorities by virtue of being members of which they were nominated for appointment as members of the water committee.

37. A member of the water committee shall not be personally liable for the fulfilment of any obligation undertaken or contract or agreement made in respect of the water undertaking or for the repayment of any money borrowed by the Corporation for the purposes of the water undertaking under any enactment relating to the water undertaking.

PART V

FUNCTIONS &C. OF WATER COMMITTEE

38.—(1) Subject to the provisions of the standing orders of the Corporation in force at the appointed day or thereafter made by the Corporation from time to time all matters connected with the functions of the Corporation as local water authority within the limits of supply shall stand referred or be delegated (as the case may be) to the water committee to the same extent and effect as matters connected with the functions of the Corporation as local water authority within the existing limits were referred or delegated to the water committee of the Corporation immediately before the appointed day.

Matters to be referred to and functions of water committee.

(2) An alteration of the standing orders of the Corporation in force at the appointed day or resolution of the Corporation affecting the powers of the water committee as prescribed by this Order shall not unless by agreement between the Corporation the county council and the town councils receive effect without the approval of the Secretary of State.

(3) The standing orders of the Corporation shall except in so far as inconsistent with the provisions of this Order extend and apply to the water committee in the same manner as they extend and apply to the other committees of the Corporation.

39. The county council and each of the town councils shall have the right to make representations to the Corporation on all matters which relate to the water undertaking and affect substantially the interests of the county council or of the town council concerned as the case may be and which are not delegated to the water committee under the provisions of this Order and the Corporation shall be bound to consider any such representations and shall intimate their decisions thereon to the county council or to the town council concerned as the case may be:

Powers of county and town councils to make representations to Corporation.

Provided that—

(a) the foregoing provisions of this section shall not apply to matters of ordinary administration which in terms of the standing orders of the Corporation fall to be dealt with by or referred to committees of the Corporation other than the water committee and are not included in the delegation of matters to the water committee ;

(b) such representations shall be intimated to the Corporation with all reasonable expedition ; and

(c) any exercise of the power to make representations hereinbefore referred to shall not prejudice the right of the Corporation to take action in any case in which they may reasonably consider that delay might result in prejudice to the proper and efficient administration of the water undertaking.

40. There shall be reserved to the county council and to the town councils any rights competent to them or any of them to make representations to the Secretary of State on matters which are not included in the delegation of matters to the water committee under the provisions of this Order provided that such representations can competently be dealt with by the Secretary of State under the powers vested in him under the Water Act 1946 or any other enactment.

Reservation of rights to county and town councils.

PART VI

WATER RATES AND CHARGES

Special provisions as to water rates &c. in area beyond city.

41. Notwithstanding anything contained in the Water Act 1949—

(1) (a) During the period of twenty years from the twenty-ninth day of May one thousand nine hundred and forty-nine the amount of the domestic water rate assumed to be levied within that part of the limits of supply which is beyond the city shall be an amount fixed annually by the Corporation but shall not exceed the amounts specified in the following table:—

1	2	3	4
Area	First 10 years	Following 5 years	Remainder of period
	s. d.	s. d.	s. d.
County (landward area) ...	2 0	1 8	1 3
Burghs—			
• Bonnyrigg and Lasswade ...	1 3	1 1	10
Dalkeith	1 0	11	9
Loanhead	1 3	1 1	10
Musselburgh	1 3	1 1	10
Penicuik	1 3	1 1	10

(b) After the twenty-ninth day of May one thousand nine hundred and sixty-nine the amount of the domestic water rate assumed to be levied annually within that part of the limits of supply which is beyond the city shall be the amount of the domestic water rate levied within the city in respect of the corresponding year:

(2) (a) During the period of ten years from the twenty-ninth day of May one thousand nine hundred and forty-nine the amount of the public water rate assumed to be levied annually within that part of the limits of supply which is beyond the city shall be threepence per pound of rateable value;

(b) After the twenty-ninth day of May one thousand nine hundred and fifty-nine the amount of the public water rate assumed to be levied annually within that part of the limits of supply which is beyond the city shall be the amount of the public water rate levied within the city in respect of the corresponding year:

(3) Subsection (4) of section 11 (Expenses of local authority supplying water in district of another authority) of the Water Act 1949 shall not apply with respect to the water undertaking during the period commencing on the appointed day and terminating on the twenty-eighth day of May one thousand nine hundred and sixty-nine.

Requisitions for year 1949–50.

42. The requisition to be issued by the Corporation to the county council and the town councils in accordance with the provisions

of subsection (2) of section 11 (Expenses of local authority supplying water in district of another authority) of the Water Act 1949 and this Order shall in respect of the period from May one thousand nine hundred and forty-nine to May one thousand nine hundred and fifty be deemed to be in respect of the period from the sixteenth day of May one thousand nine hundred and forty-nine to the twenty-eighth day of May one thousand nine hundred and fifty.

43.—(1) As from the appointed day the rates and charges for water supplied for purposes other than domestic purposes within that part of the limits of supply which is beyond the city shall be the rates and charges fixed from time to time by the Corporation in pursuance of section 66 (Charges for supplies for trade purposes in compulsory area) of the Order of 1924 and the provisions of the said section shall extend and apply in respect of water supplied for purposes other than domestic purposes within that part of the limits of supply which is beyond the city.

Charges
for water
for purposes
other than
domestic
beyond city.

(2) Nothing in this section shall be in derogation of the provisions of subsection (2) of section 16 of the Water Act 1949.

(3) For the purposes of this section “domestic purposes” has the same meaning as in section 9 (Supply of water for domestic purposes) of the Water Act 1946.

44. Notwithstanding anything in this Order the provisions of sections 31 (Supplies for extinguishing fires and other purposes) and 32 (Supplies for municipal and police purposes) of the Order of 1924 shall not apply within that part of the limits of supply which is beyond the city and in lieu thereof the provisions of Part V—Supply of water for public purposes—of the Fourth Schedule to the Water Act 1946 shall subject to the substitution of references to the Corporation for the references therein to “the undertakers” extend and apply within the said part of the limits of supply.

Supply for
public purposes
beyond city.

45.—(1) The provisions of the Rating Exemptions (Scotland) Act 1874 shall extend and apply to any rates levied within the limits of supply in accordance with the provisions of the Water Act 1949 and this Order. Provided that where a supply of water is provided for domestic purposes for any church chapel meeting-house or other premises exclusively appropriated to public religious worship within the meaning of the said Act of 1874 the occupier of such premises shall pay to the Corporation in respect of such supply such annual sum as may be reasonable having regard to the possible maximum demand for water for such premises.

Application
of Rating
Exemptions
(Scotland)
Act 1874.
37 & 38 Vict.
c. 20.

(2) The amount of the annual sum to be so paid shall be determined in default of agreement by the sheriff whose decision shall be final.

46. In determining the amount per pound of the public water rate and the domestic water rate respectively the Corporation in levying the burgh assessments shall not be bound to determine an amount which shall include a fractional part of a penny.

Public and
domestic
water rates
not to include
fraction of a
penny.

PART VII

MISCELLANEOUS

As to supplies
from trunk
mains.

47.—(1) Notwithstanding anything in any enactment relating to the Corporation a person shall not be entitled to demand a supply of water from a trunk main belonging to the Corporation.

(2) In this section the expression "trunk main" means a main constructed for the purpose of conveying water from a source of supply to a filter reservoir or pumping station or from one filter or reservoir or pumping station to another filter or reservoir or pumping station or for the purpose of conveying water in bulk from one part of the limits of supply to another part of those limits or for the purpose of giving a supply of water in bulk to other undertakers.

Saving for
bulk supply
agreements.

48.—(1) Subject as hereinafter provided in this section nothing contained in this Order shall prejudice or affect any existing agreement between the Corporation and any company or person for the supply of water in bulk to any such company or person.

(2) In so far as any water supplied in pursuance of any such agreement is used for domestic purposes such agreement shall be modified as hereinafter provided in this section as and when the Corporation provide to the premises receiving such supply a supply of water for domestic purposes under the provisions of this Order and of any other enactments relating to the water undertaking and to the supply of water by the Corporation.

(3) Where a supply of water for domestic purposes is provided by the Corporation as aforesaid in substitution for water supplied in pursuance of any such agreement and used for domestic purposes such equitable adjustment of the terms of the said agreement shall be made as shall be agreed between the parties or failing agreement determined by the sheriff on the application of either party.

Minutes of
meetings
accounts &c.
to be supplied
to county
and town
clerks.

49.—(1) The town clerk shall send to the county clerk and to the town clerk of each of the burghs a copy of—

- (a) minutes of all meetings of the water committee ;
- (b) minutes of all meetings of the Corporation so far as relating to the water undertaking ;
- (c) the final estimates of the Corporation so far as relating to the water undertaking ; and
- (d) the abstract of the accounts of the Corporation so far as relating to the water undertaking duly audited.

(2) The copies of such minutes and final estimates shall be sent as nearly as practicable at the same time as they are sent to the members of the water committee and the Corporation respectively.

(3) The copies of the abstract of accounts shall be sent as soon as reasonably practicable after the completion of the audit.

Adaptations and
amendments of
certain
provisions of
Orders of 1924
and 1933.

50.—(1) References in the Order of 1924 to a supply of water "for trade purposes" or to a supply of water "for a trade purpose" shall be construed as if they were references to a supply of water "for purposes other than domestic purposes" or to a supply of water

“for a purpose other than a domestic purpose” and “domestic purposes” shall have the same meaning as in the Water Act 1946.

(2) Section 17 (Purchase of sporting and other rights) of the Order of 1924 shall be read and have effect as if the reference therein to “the Water Acts” included a reference to this Order and as if in addition to the reference therein to section 92 (Repeal of Acts &c.) of the Order of 1924 there were included a reference to the section of this Order of which the marginal note is “Partial repeal of Act and Orders and Scheme relating to transferred undertakings.”

(3) Section 34 (Public wells &c.) and section 66 (Charges for supplies for trade purposes in compulsory area) of the Order of 1924 shall be read and have effect as if for the references therein to “the compulsory area” there were substituted references to “the city.”

(4) Section 24 (As to agricultural lands and heritages) of the Edinburgh Corporation Order 1933 shall be read and have effect as if the word “water” were omitted therefrom.

51. Subject to the provisions of this Order the provisions of the Acts and Orders specified in the First Schedule to this Order are as from the appointed day hereby repealed to the extent indicated in the third column of that schedule. Repeal of certain provisions of city Acts.

52.—(1) Subject to the provisions of this Order and notwithstanding the repeal of the repealed Acts:— Saving from effect of repeal.

(a) All acts works matters and things done or commenced under the powers of the repealed Acts or any of them which were at the appointed day valid and available or in progress and all existing agreements awards conveyances contracts titles deeds instruments feus leases wayleaves obligations rights and remedies shall be and continue valid and available for all purposes and for and against all persons and may be continued enforced and completed as if the Act confirming this Order had not been passed ;

(b) All existing byelaws rules and regulations in execution of or in relation to any of the repealed Acts shall continue in force until repealed altered or revoked or until their expiration and may be enforced in like manner and with the same penalties as if made for like purposes respectively under the provisions of this Order or of any other enactment relating to the water undertaking or to the supply of water by the Corporation ;

(c) All plans sections and books of reference and all corrections and certificates of corrections thereof respectively deposited for the purposes of any of the repealed Acts with any clerk of the peace or sheriff clerk shall remain in his custody for all intents and purposes as if the Act confirming this Order had not been passed.

(2) For the purposes of this section the expression “repealed Acts” means the provisions of the Acts Orders and Scheme repealed by this Order.

PART VII
—cont.

Compensation
for termination
of free supplies
and supplies
on special terms.

53.—(1) The Corporation shall pay compensation as hereinafter provided in this section—

(a) to the managers of the House of Refuge for the Destitute at No. 64 Canongate Edinburgh such sum as may be agreed between the Corporation and the said managers in respect of the termination consequent on the repeal by this Order of the obligations imposed on the Corporation by section 33 (Supplies for Royal Infirmary &c.) of the Order of 1924 to furnish a supply of water free of charge (inter alia) to the said House of Refuge for the Destitute ;

(b) to the occupiers of any hospital nursing home asylum or sanatorium wholly or partly supported by endowments or voluntary contributions and not carried on for purposes of profit or gain entitled to and in receipt at the appointed day of a discount for supplies of water by measure in terms of the proviso to section 37 (Supply to houses partly used for trade &c.) of the Order of 1924 in respect of the termination of such discount consequent on the repeal of the said proviso.

(2) The amount of the compensation to be paid under subsection (1) of this section shall be such as may be agreed between the Corporation and the said managers or occupiers as the case may be or as in default of agreement may be determined by an arbiter to be mutually agreed upon between the parties or failing agreement to be appointed on the application of either party by the sheriff.

(3) If any question of law arises in the course of such arbitration the arbiter shall at the request of either party state a case for the opinion of the court of session and the opinion of the court shall be final.

Amendment of
section 9 of
Order of 1935.

54. Section 9 (For protection of river Tweed Commissioners) of the Order of 1935 shall be read and have effect as if subsection (1) were omitted therefrom and as if the following subsection were inserted in lieu thereof:—

“(1) The Corporation shall relieve the commissioners of liability to any other party interested in the compensation water from the Talla reservoir.”

Partial repeal of
Act and Orders
and Scheme
relating to
transferred
undertakings.

55.—(1) The Act Orders and Scheme hereinafter mentioned in this section relating to the transferred undertakings are as from the appointed day hereby repealed except so far as may be necessary to give effect to the provisions of this Order and except the provisions of the said Orders and Scheme specified in the Second Schedule to this Order which provisions shall extend and apply to the Corporation in respect of the water undertaking.

(2) The Corporation shall have the powers and rights and be subject to the obligations of the provisions of the said Orders and Scheme specified in the Second Schedule to this Order as if the Corporation were named in the said provisions instead of the county council or the provost magistrates and councillors of the burgh of Penicuik as the case may be.

(3) The Act Orders and Scheme hereinbefore in this section referred to are—

PART VII
—cont.

The Musselburgh and Dalkeith Water Act 1871 ;

The Midlothian (Calder District) Water Order 1924 ;

The Midlothian County Council (Calder) Water Order 1931 ; and

The Penicuik Water Scheme 1934.

56.—(1) Subject to the provisions of section 259 (Restrictions on power to borrow) of the Act of 1947 the Corporation may from time to time borrow such sums of money as may be necessary for the purposes of this Order or any of them to which capital is properly applicable and for which borrowing powers have not been otherwise granted. Financial provisions.

(2) The provisions of section 262 (Period of repayment of borrowed money) of and the Sixth Schedule to the Act of 1947 with respect to the repayment of sums borrowed for the purposes of the Water Act 1946 shall subject to the provisions of this Order extend and apply to the repayment of sums borrowed by the Corporation for the purposes of the water undertaking.

57. Nothing in this Order shall authorise the exercise of any power of borrowing money or the making of any issue of capital otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any defence regulation within the meaning of the Supplies and Services (Transitional Powers) Act 1945 for the time being having effect by virtue of that Act or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946. Saving for emergency restriction on borrowing.
8 & 9 Geo. 6. c. 18.
9 Geo. 6. c. 10.
9 & 10 Geo. 6. c. 58.

58. All costs charges and expenses incurred preparatory to and in applying for obtaining and confirming this Order or in any way incidental thereto shall be paid by the Corporation out of the burgh assessments or out of moneys borrowed by the Corporation under the powers of the Edinburgh Corporation Acts 1924 to 1937 and this Order or out of the revenues of the water undertaking and in case such costs are paid out of borrowed moneys the same shall be repaid within five years from the twenty-eighth day of May first occurring after the date of the passing of the Act confirming this Order. Costs of Order.

THE FIRST SCHEDULE

(Referred to in the section of this Order of which the marginal note is "Repeal of certain provisions of city Acts".)

Session and Chapter	Title	Extent of Repeal
39 Vict. c. xxxiii.	Edinburgh and District Waterworks Act 1876.	Sections 26 to 31 inclusive.
58 Vict. c. xxvii.	Edinburgh and District Waterworks (Additional Supply) Act 1895.	Sections 5 10 11 and 16 and the Second Schedule.
4 Edw. 7. c. clxxxviii.	Edinburgh and District Water Order Confirmation Act 1904.	Section 8 of the Order scheduled thereto.
8 Edw. 7. c. clii.	Edinburgh and District Water Order Confirmation Act 1908.	Subsection (1) of section 24 and sections 25 26 and 27 of and the Schedule to the Order scheduled thereto.
10 & 11 Geo. 5. c. lxxxvii.	Edinburgh Boundaries Extension and Tramways Act 1920.	Section 88 and the Eighth Schedule.
14 & 15 Geo. 5. c. lxxxvi.	Edinburgh Corporation Water Order Confirmation Act 1924.	Sections 18 23 25 and 26 subsections (1) and (2) of section 27 sections 28 29 33 the proviso to section 37 sections 46 54 68 and 74 in section 85 the words "or any byelaws of the Corporation under the provisions of the section of this Order the marginal note of which is 'Byelaws for preventing waste of water' for the time being in force" and the words "or the said byelaws" and sections 95 96 and 97 of the Order scheduled thereto
16 & 17 Geo 5. c. xxii.	Edinburgh Corporation (General Powers) Order 1926.	Section 25.
26 Geo. 5. & 1 Edw. 8. c. vi.	Edinburgh Corporation Order Confirmation Act 1936.	Subsections (2) and (3) of section 8 sections 11 and 12 and subsections (6) and (7) of section 15 of the Order scheduled thereto and in section 46 of the said Order the words "Section 74 (Assessment rolls to be made up) in so far as regards the provisions applicable to head (a) of that section."

THE SECOND SCHEDULE

(Referred to in the section of this Order of which the marginal note is "Partial repeal of Act and Orders and Scheme relating to transferred undertakings")

PROVISIONS SAVED FROM REPEAL

Midlothian (Calder District) Water Order 1924

Subsection (2) of section 54	...	For protection of Henry Bruce and Sons Limited and P. C. Bruce.
Subsection (1) of section 57	...	For protection of James Howat of Raw Farm.
Section 58		For protection of London and North Eastern and London Midland and Scottish Railway Companies.
Subsections (1) (3) and (4) of section 60		For protection of St. Cuthbert's Co-operative Association Limited.
Section 61		For protection of William Whitelaw of Hatton.
Subsections (1) and (2) of section 63		For protection of Earl of Morton.
Subsections (1) (3) and (4) of section 64		For protection of George Barr of Ormiston.

Penicuik Water Scheme 1934

Section 17	Compensation water.
Section 24	No sporting shooting or fishing rights.
Section 25	Compensation for damage &c.
Section 26	Saving existing rights.

Ch. xx

Edinburgh and Midlothian 12 & 13 GEO. 6
Water Order Confirmation Act, 1949

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